

Act he claims were violated. Cross-defendants, for their part, in any future demurrer, shall address each cause of action in the headings of their briefing, clearly labeled to mirror the claims as alleged in the cross-complaint in order to facilitate the Court's review.

7. 9:00 AM CASE NUMBER: C25-01243
CASE NAME: PATELCO CREDIT UNION VS. GREGORY M CLIFTON JR
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF THE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: PATELCO CREDIT UNION
TENTATIVE RULING:

DENIED as moot. See Line 6.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: COMPEL FURTHER VERIFIED RESPONSES HECTOR LOPEZ**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Verified Responses on October 30, 2025 as relates to discovery propounded upon defendant Hector Lopez (the "Motion to Compel Further Responses re Defendant Lopez"). The Motion to Compel Further Responses re Defendant Lopez was set for hearing on March 16, 2026.

However, the motion was withdrawn by Plaintiff's Notice of Withdrawal filed March 3, 2026.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel Further Responses re Defendant Lopez is DROPPED from calendar as WITHDRAWN.

9. 9:00 AM CASE NUMBER: C25-02735
CASE NAME: MELISA CALICA VS. FORD MOTOR COMPANY
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: FUTURE FORD OF CONCORD
TENTATIVE RULING:

Before the Court is Defendant Future Ford of Concord, LLC's Motion to Compel Arbitration and Stay Action ("Motion").

For the following reasons, Defendant's Motion to Compel Arbitration is **GRANTED**. Defendant's motion to stay is also **GRANTED**, and the action is **STAYED** pending the conclusion of the arbitration.

Factual Allegations and Procedural Background

Plaintiffs Melisa Nopuente Calica and Elmer Mensalves Calica (“Plaintiffs”) purchased a 2020 Ford Expedition (“Vehicle”) from Defendant Future Ford of Concord on March 22, 2021. (¶¶ 7, 10.) At the time of purchase, Plaintiff signed a Retail Installment Sale Contract (“RISC”). (Clayton Decl. ¶ 2, Ex. A.) The RISC contained an arbitration provision (the “Arbitration Agreement”). (*Ibid.*) Plaintiffs signed the portion of the RISC specifically agreeing to arbitration. (*Ibid.*)

On April 27, 2022, Plaintiff filed the instant action alleging violations of the Song-Beverly Consumer Warranty Act, Civil Code Section 1790 *et seq.* (“Song-Beverly Act”) against Defendants Ford Motor Company and Future Ford of Concord. Plaintiffs allege that during their ownership of the Vehicle defects appeared in the suspension and transmission systems. (¶ 14.) They allege these defects were covered by the express warranties included in their purchase of the Vehicle. (*Ibid.*) Plaintiffs took the Vehicle to Defendant and/or its authorized service and repair facilities, but they were unable to repair the Vehicle “to conform to the applicable express warranties after a reasonable number of opportunities to do so.” (¶ 16.)

Defendant Future Ford of Concord moves to compel arbitration based on the Arbitration Agreement in the RISC. The Arbitration Agreement states that it is governed by the Federal Arbitration Act (“FAA”), (9 U.S.C. § 1 *et seq.*) “and not by any state law concerning arbitration.” (RISC p. 7.)

Analysis

Governing Law

The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement. (See *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355: “[T]he presence of interstate commerce is not the only manner under which the FAA may apply. ... [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement”). In fact, the California Supreme Court found the FAA to apply in a case involving the same RISC language indicating that the FAA governed. (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1128 fn. 2.) Plaintiffs do not argue that the FAA does not apply.

“[I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. [Citations.] General principles of California contract law guide the court in making this determination.” (*Id.* at 1128 quoting *Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

Existence of Arbitration Agreement

The threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“*Rosenthal*”); Code Civ. Proc. §§ 1281.2, 1290.2.) Future Ford, as the party moving to compel arbitration, bears the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal, supra*, 14 Cal.4th at 413.)

Future Ford attaches a copy of the RISC as Exhibit A to the Clayton Declaration. The RISC indicates in its title that there is an Arbitration Agreement included therein: “Retail Installment Sale Contract – Simple Finance Charge (with Arbitration Provision).” (Ex. A, all caps removed.) On page 1 of the RISC,

there is a section titled: "Agreement to Arbitrate" which also notes there is an Arbitration Agreement included. Plaintiffs signed this section:

Agreement to Arbitrate: By signing below, you agree that, pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.	
BY:	<i>Melisa N Calica</i>
Buyer Signs X	
Co-Buyer Signs X	<i>[Signature]</i>

On Page 6, there is another reference to the Arbitration Agreement wherein Plaintiffs agreed that they read the entire RISC and agree to its terms, "including the arbitration provision on page 7 of this contract..." (RISC, p. 6.) Plaintiffs both signed this section of the RISC as well. Page 7 of the RISC is the Arbitration Agreement which Plaintiffs again both signed.

In their opposition, Plaintiffs concede that the purchase of the Vehicle "was memorialized in a Retail Installment Sale Contract ("RISC")" citing to Exhibit A to the Clayton Declaration. (Opp. at 2:20-23.) They also admit that the "RISC contains an arbitration provision on page 7." (*Ibid.*)

The above is sufficient to meet Future Ford's burden to show the existence of an arbitration agreement.

Plaintiffs, however, argue that Future Ford, as the selling dealer, cannot enforce the RISC arbitration clause as a third-party beneficiary. (Opp. at III A.)

Third-Party Beneficiary

The RISC was entered into between Plaintiffs and Defendant Future Ford:

Buyer Name and Address (Including County and Zip Code)	Co-Buyer Name and Address (Including County and Zip Code)	Seller-Creditor (Name and Address)
MELISA N CALICA 2695 CHERRY LN WALNUT CREEK, CA 94597 COUNTY: CONTRA COSTA 925/470-7480	ELMER M CALICA 5405 SOUTHWOOD WAY ANTIOCH, CA 94531 COUNTY: CONTRA COSTA 925/470-7480	FUTURE FORD OF CONCORD 2285 DIAMOND BLVD CONCORD, CA 94520 925/686 5000

You, the Buyer (and Co-Buyer, if any), may buy the vehicle below for cash or on credit. By signing this contract, you choose to buy the vehicle on credit under the agreements on all pages of this contract. You agree to pay the Seller - Creditor (sometimes "we" or "us" in this contract) the Amount Financed and Finance Charge in U.S. funds according to the payment schedule below. We will figure your finance charge on a daily basis. The Truth-In-Lending Disclosures below are part of this contract.

As noted on the first page of the RISC, the seller-creditor is Future Ford of Concord, which is sometimes referred to as "we" or "us." The essential elements of a contract include parties capable of contracting, their consent, a lawful objective, and consideration. (Civ. Code § 1550.) Here, the parties to the RISC are Plaintiffs and Future Ford. As such, Future Ford is not a 'third-party' to the contract. Accordingly, Plaintiffs' arguments relating to third-party enforcement of the RISC are without merit.

Plaintiffs' citation to and reliance upon the Court of Appeals' decision in *Ford Motor Warranty Cases (Ochoa v. Ford Motor Co.)* (2023) 89 Cal.App.5th 1324 is similarly misplaced. There, the contract at issue was materially the same as in this case. As noted by the court, the sale contracts were "between the vehicle purchaser, on the one hand and the selling dealer, on the other." (*Id.* at 1329.) "The purchaser is referred to as the 'Buyer' or 'you,' and the selling dealer is referred to as the 'Creditor-Seller,' 'we,' or 'us.'" (*Ibid.*) Ford Motor Company, the manufacturer, was not named in the sales

contract. (*Ibid.*)

As in this case, plaintiffs began experiencing problems with their vehicles which were alleged to be covered by warranty. (*Id.* at 1330.) Plaintiffs sued Ford Motor Company (the manufacturer) “but did not sue the dealer parties to the sale contracts.” (*Ibid.*) Ford Motor Company moved to compel arbitration under the terms of the RISC as a third-party beneficiary and under estoppel theories. (*Ibid.*) The Court of Appeal analyzed those theories and found the Ford Motor Company could not compel arbitration as it “was not a third-party beneficiary of those agreements.” (*Id.* at 1329.)

The Court of Appeals decision was affirmed by the California Supreme Court. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122.) As the Supreme Court noted, the “general rule is that one must be a party to an arbitration agreement either to be bound by or to invoke it.” (*Id.* at 1128.)

The Arbitration Agreement provides that “Either you or we [i.e. Future Ford] may choose to have any dispute between us [i.e. Future Ford] decided by arbitration and not in court or by jury trial.” (RISC p. 7.) It is unequivocal that Future Ford is a party to the Arbitration Agreement, and as such has every right to invoke and enforce it.

Scope of Arbitration Agreement

The relevant portion of the Arbitration Agreement defining the scope of the agreement states, in pertinent part:

“Any claim or dispute, whether in contract, tort, statute or otherwise ... between you and us [i.e. Future Ford] ... which arises out of or relates to ... [the] purchase or condition of this vehicle, this contract or any resulting transaction or relationship ... shall, at your or our [i.e. Future Ford] election, be resolved by neutral, binding arbitration and not by a court action.” (RISC at p. 7, emphasis added.)

Plaintiffs contend that the Vehicle did not work as intended and was not properly repaired by Defendants. As such, all of their claims ‘arise out of or related to’ the ‘condition of the vehicle.’ They also all relate to the contract and resulting relationship as they all pertain to the Vehicle and Future Ford’s purported failure to properly repair it.

Unconscionability

Plaintiffs also argue that the Arbitration Agreement should not be enforced as it is unconscionable.

The “unconscionability doctrine ‘has both a procedural and a substantive element.’” (*OTO, L.L.C.*, *supra*, 8 Cal.5th at 125.) “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.” (*Ibid.* quoting *Pinnacle*, *supra*, 55 Cal.4th at 246.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’” (*OTO, L.L.C.* 8 Cal.5th at 125.) “Instead, they are evaluated on a ‘sliding scale.’” (*Ibid.*) “[T]he more substantively oppressive the contract term, the less

evidence of procedural unconscionability is required to ‘conclude that the term is unenforceable.’” (*Ibid.*) “Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required.” (*Ibid.*)

“The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.) Here, Plaintiffs argue that the Arbitration Agreement is both procedurally and substantively unconscionable.

Procedural Unconscionability

Procedural unconscionability involves the components of “oppression” and “surprise.” (*OTO, supra*, 8 Cal.5th at 126.) “Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, “involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Ibid.*) Plaintiff contends that both oppression and surprise are present.

Oppression

“Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.)

Plaintiffs argue that they “had no meaningful opportunity to negotiate the arbitration clause; it was presented as a non-negotiable term of the vehicle purchase,” and that they “had no ability to bargain with or walk away from the dealership’s standard contract terms.” (Opp. at 5:13-17.) Plaintiffs, however, present no evidence to support this argument. Plaintiffs fail to provide any declaration supporting their claims indicating how the RISC and Arbitration Agreement were presented to them, how long they had to review it, or whether or not they even attempted to negotiate the inclusion of the Arbitration Agreement.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) Even if the allegations could be considered evidence, “the statements contained in the memorandum [of points and authorities] lack foundation and could not be used by the court to evaluate the consideration.” (*Brehm Cmtys. v. Superior Court* (2001) 88 Cal.App.4th 730, 735; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515: “The allegations of a brief are not evidence and a brief is not a sworn document.”)

Plaintiffs have failed to meet their burden to show ‘oppression’ in the presentation of the Arbitration Agreement.

Surprise

Surprise, for purposes of procedural unconscionability, “involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Flores, supra*, 93 Cal.App.4th at 853.) Plaintiffs argue that the Arbitration Agreement is “buried in the

standard form RISC on page 7, in fine print, among numerous other contractual provisions.” (Opp. at 5:18-19.)

As noted by Defendant, the title of the RISC specifically indicates that there is an arbitration provision contained therein. There are also two separate areas within the RISC which specifically reference the Arbitration Agreement – sections which the Plaintiffs separately signed. The Arbitration Agreement itself is on its own separate page and titled:

ARBITRATION PROVISION
PLEASE REVIEW – IMPORTANT – AFFECTS YOUR LEGAL RIGHTS

There is nothing inconspicuous or subtle about the Arbitration Agreement. This separate page is also separately signed by Plaintiffs. Plaintiffs have failed to meet their burden to show ‘surprise’ in the presentation of the Arbitration Agreement.

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra*, 61 Cal.4th at 910-11, 913; *Armendariz, supra*, 24 Cal.4th at 117.) Substantive unconscionability focuses on the substantive fairness of the terms and whether the agreement is “unfairly one-sided.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra*, 62 Cal.4th at 1248.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez, supra*, 61 Cal.4th at 911-12.)

“A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to “shock the conscience.” [Citation omitted.]” (*Pinnacle, supra*, 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Plaintiffs argue that the Arbitration Agreement requires them to give up their right to a jury trial. However, the purpose of an arbitration agreement is to uphold the contracting parties’ agreement to waive a jury trial for a more expeditious process to resolve claims. “California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration.” (*Coast Plaza Doctors Hosp. v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686.) As the California Supreme Court noted “... the decision to arbitrate grievances evinces the parties’ intent to bypass the judicial system and thus avoid potential delays at the trial and appellate levels” (*Ibid.* quoting *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 10.)

As every arbitration agreement necessarily waives the parties’ right to a jury, the waiver of a jury right is not a factor in deciding substantive unconscionability.

Plaintiffs’ argument regarding the class action waiver has no application here as Plaintiffs do not allege any class claims.

Stay

As noted above, the Arbitration Agreement is governed by the FAA. Under the FAA, if the Court determines that the matter be referred to arbitration, the Court “shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement....” (9 USC § 3.) When the FAA applies, so does “section 3 which requires the court to stay the judicial proceeding and compel arbitration.” (*Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122.)

“Here, as in other contexts, the use of the word ‘shall’ ‘creates an obligation impervious to judicial discretion.’” (*Smith v. Spizzirri* (2024) 601 U.S. 472, 476 quoting *Lexecon Inc. v. Milberg Weiss Bershad Hynes & Lerach* (1998) 523 U.S. 26, 35.) “That plain statutory text requires a court to stay the proceedings.” (*Ibid.*) “When § 3 says that a court ‘shall ... stay’ the proceeding, the court must do so.” (*Ibid.*) The FAA “does not authorize courts to stay arbitration pending resolution of litigation, or to refuse to enforce a valid arbitration provision to avoid duplicative proceedings or conflicting rulings. (*Mastick v. TD Ameritrade, Inc.* (209 Cal.App.4th 1258, 1263.)

As the Court has found that Future Ford’s motion to compel is to be granted, it must and will stay the proceedings in full until the arbitration has concluded.

Conclusion

Defendant Future Ford has met its burden to show that there is an enforceable arbitration agreement. Plaintiffs have failed to demonstrate that Future Ford is precluded from enforcing the Arbitration Agreement, or that it is unconscionable.

As such, Future Ford’s motion to compel arbitration is **GRANTED**. The request to stay the matter is also **GRANTED**. This matter is stayed in full pending resolution of the arbitration.

10. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY AND PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Petitioner Grange Insurance Association (“Petitioner”) filed a Verified Petition to Perpetuate Testimony and Preserve Evidence on September 25, 2025 (the “Petition”). The matter was set for hearing on February 2, 2026.

The Court published its tentative ruling for the February 2, 2026 hearing date expressing concerns about the merits of the motion. In any event, the Court did not decide the merits as there was no showing of proper service. The Court continued the hearing to March 16, 2026 and ordered Petitioner to give notice.

Background

Petitioner seeks an order pursuant to California Code of Civil Procedure sections 2035.010 *et seq.* authorizing “pre-litigation discovery by taking oral depositions and/or preserving evidence for the purpose of perpetuating testimony relevant to an anticipated action involving Respondent Cynthia Gomez.” Petition, p. 1.